

# SENATE BILL No. 166

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## DIGEST OF INTRODUCED BILL

**Citations Affected:** IC 1-1-4-5; IC 4-13-16.5-1; IC 4-15-2.2-32; IC 5-9-3; IC 5-10.3-7-5; IC 5-10.4-4-8; IC 9-18.5-7-3; IC 10-16-6-12; IC 10-17; IC 16-33-4-7; IC 20-20-7; IC 22-4.1-4-3.3; IC 25-8-12.1-12; IC 25-10-1-7; IC 25-25-2-1; IC 25-37-1-14; IC 36-8.

**Synopsis:** Eligibility for veteran's benefits. Changes references relating to military discharges to require discharges under honorable conditions. (Current law provides that a veteran is eligible for benefits except under certain conditions designated by the Indiana department of veterans' affairs.) Excludes references used to determine eligibility for grants from the military family relief fund.

**Effective:** July 1, 2026.

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**Spencer**

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January 5, 2026, read first time and referred to Committee on Veterans Affairs and The Military.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## SENATE BILL No. 166

A BILL FOR AN ACT to amend the Indiana Code concerning public safety.

*Be it enacted by the General Assembly of the State of Indiana:*

- 1 SECTION 1. IC 1-1-4-5, AS AMENDED BY P.L.238-2025,  
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
3 JULY 1, 2026]: Sec. 5. (a) The following definitions apply to the  
4 construction of all Indiana statutes, unless the construction is plainly  
5 repugnant to the intent of the general assembly or of the context of the  
6 statute:
- 7 (1) "Adult", "of full age", and "person in his majority" mean a
  - 8 person at least eighteen (18) years of age.
  - 9 (2) "Attorney" includes a counselor or other person authorized to
  - 10 appear and represent a party in an action or special proceeding.
  - 11 (3) "Autism" means a neurological condition as described in the
  - 12 most recent edition of the Diagnostic and Statistical Manual of
  - 13 Mental Disorders of the American Psychiatric Association.
  - 14 (4) "Bond" does not necessarily imply a seal.
  - 15 (5) "Clerk" means the clerk of the court or a person authorized to
  - 16 perform the clerk's duties.
  - 17 (6) "Health record", "hospital record", or "medical record" means



written or printed information possessed by a provider (as defined in IC 16-18-2-295) concerning any diagnosis, treatment, or prognosis of the patient, unless otherwise defined. Except as otherwise provided, the terms include mental health records and drug and alcohol abuse records.

(7) "Highway" includes county bridges and state and county roads, unless otherwise expressly provided.

(8) "Infant" or "minor" means a person less than eighteen (18) years of age.

(9) "Inhabitant" may be construed to mean a resident in any place.

(10) "Judgment" means all final orders, decrees, and determinations in an action and all orders upon which executions may issue.

(11) "Land", "real estate", and "real property" include lands, tenements, and hereditaments.

(12) "Mentally incompetent" means of unsound mind.

(13) "Money demands on contract", when used in reference to an action, means an action arising out of contract when the relief demanded is a recovery of money.

(14) "Month" means a calendar month, unless otherwise expressed.

(15) "Noncode statute" means a statute that is not codified as part of the Indiana Code.

(16) "Oath" includes "affirmation", and "to swear" includes to "affirm".

(17) "Person" extends to bodies politic and corporate.

(18) "Personal property" includes goods, chattels, evidences of debt, and things in action.

(19) "Population" has the meaning set forth in IC 1-1-3.5-3.

(20) "Preceding" and "following", referring to sections in statutes, mean the sections next preceding or next following that in which the words occur, unless some other section is designated.

(21) "Property" includes personal and real property.

(22) "Sheriff" means the sheriff of the county or another person authorized to perform sheriff's duties.

(23) "State", applied to any one (1) of the United States, includes the District of Columbia and the commonwealths, possessions, states in free association with the United States, and the territories. "United States" includes the District of Columbia and the commonwealths, possessions, states in free association with the United States, and the territories.

(24) "Under legal disabilities" includes persons less than eighteen



(18) years of age, mentally incompetent, or out of the United States.

(25) "Verified", when applied to pleadings, means supported by oath or affirmation in writing.

(26) "Will" includes a testament and codicil.

(27) "Without relief" in any judgment, contract, execution, or other instrument of writing or record, means without the benefit of valuation laws.

(28) "Written" and "in writing" include printing, lithographing, or other mode of representing words and letters. If the written signature of a person is required, the terms mean the proper handwriting of the person or the person's mark.

(29) "Year" means a calendar year, unless otherwise expressed.

(30) The definitions in IC 35-31.5 apply to all statutes relating to penal offenses.

(b) This subsection applies to the definitions of "Hoosier veteran" and "veteran" when used in reference to state programs for veterans. The term "veteran" includes "Hoosier veteran", and applies to the construction of all Indiana statutes, unless the construction is expressly excluded by the terms of the statute, is plainly repugnant to the intent of the general assembly or of the context of the statute, or is inconsistent with federal law. "Hoosier veteran" means an individual who meets the following criteria:

(1) The individual is a resident of Indiana.

(2) The individual served in an active or reserve component of the armed forces of the United States or the Indiana National Guard.

(3) The individual completed any required military occupational specialty training and was ~~not~~ discharged or separated from the armed forces or the Indiana National Guard under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2):~~ **honorable conditions.**

The definitions set forth in this subsection may not be construed to affect a Hoosier veteran's eligibility for any state program that is based upon a particular aspect of the Hoosier veteran's service such as a disability or a wartime service requirement.

SECTION 2. IC 4-13-16.5-1, AS AMENDED BY P.L.238-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The definitions in this section apply throughout this chapter.

(b) "Commission" refers to the governor's commission on supplier diversity established under section 2 of this chapter.

(c) "Commissioner" refers to the commissioner of the department.



(d) "Contract" means any contract awarded by a state agency or, as set forth in section 2(g)(11) of this chapter, awarded by a recipient of state grant funds, for construction projects or the procurement of goods or services, including professional services. For purposes of this subsection, "goods or services" may not include the following when determining the total value of contracts for state agencies:

- (1) Utilities.
- (2) Health care services (as defined in IC 27-8-11-1(c)).
- (3) Rent paid for real property or payments constituting the price of an interest in real property as a result of a real estate transaction.

(e) "Contractor" means a person or entity that:

- (1) contracts with a state agency; or
- (2) as set forth in section 2(g)(11) of this chapter:
  - (A) is a recipient of state grant funds; and
  - (B) enters into a contract:
    - (i) with a person or entity other than a state agency; and
    - (ii) that is paid for in whole or in part with the state grant funds.

(f) "Department" refers to the Indiana department of administration established by IC 4-13-1-2.

(g) "Deputy commissioner" refers to the deputy commissioner for supplier diversity of the department.

(h) "Minority business enterprise" or "minority business" means an individual, partnership, corporation, limited liability company, or joint venture of any kind that is owned and controlled by one (1) or more persons who are:

- (1) United States citizens; and
- (2) members of a minority group or a qualified minority nonprofit corporation.

(i) "NGB-22" means the National Guard Report of Separation form or its predecessor or successor form.

(j) "Qualified minority or women's nonprofit corporation" means a corporation that:

- (1) is exempt from federal income taxation under Section 501(c)(3) of the Internal Revenue Code;
- (2) is headquartered in Indiana;
- (3) has been in continuous existence for at least five (5) years;
- (4) has a board of directors that has been in compliance with all other requirements of this chapter for at least five (5) years;
- (5) is chartered for the benefit of the minority community or women; and



(6) provides a service that will not impede competition among minority business enterprises or women's business enterprises at the time a nonprofit applies for certification as a minority business enterprise or a women's business enterprise.

(k) "Owned and controlled" means:

(1) if the business is a qualified minority nonprofit corporation, a majority of the board of directors are minority;

(2) if the business is a qualified women's nonprofit corporation, a majority of the members of the board of directors are women; or

(3) if the business is a business other than a qualified minority or women's nonprofit corporation, having:

(A) ownership of at least fifty-one percent (51%) of the enterprise, including corporate stock of a corporation;

(B) control over the management and active in the day-to-day operations of the business; and

(C) an interest in the capital, assets, and profits and losses of the business proportionate to the percentage of ownership.

(l) "Minority group" means:

(1) African Americans;

(2) Native Americans;

(3) Hispanic Americans; and

(4) Asian Americans.

(m) "Separate body corporate and politic" refers to an entity established by the general assembly as a body corporate and politic.

(n) "State agency" refers to any authority, board, branch, commission, committee, department, division, or other instrumentality of the executive, including the administrative, department of state government.

(o) "Veteran" means an individual who:

(1) has previously:

(A) served on active duty in any branch of the armed forces of the United States or their reserves, in the national guard, or in the Indiana National Guard; and

(B) received a discharge from service under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2);~~ **honorable conditions;** or

(2) is currently serving in:

(A) any branch of the armed forces of the United States or their reserves;

(B) the national guard; or

(C) the Indiana National Guard.

(p) "Veteran owned small business" refers to a small business that:



- (1) is independently owned and operated;
- (2) is not dominant in its field of operation; and
- (3) satisfies the criteria to be a veteran owned small business concern as specified in section 1.5 of this chapter.

(q) "Women's business enterprise" means a business that is one (1) of the following:

- (1) A sole proprietorship owned and controlled by a woman.
- (2) A partnership or joint venture owned and controlled by women in which:
  - (A) at least fifty-one percent (51%) of the ownership is held by women; and
  - (B) the management and daily business operations are controlled by at least one (1) of the women who owns the business.
- (3) A corporation or other entity:
  - (A) whose management and daily business operations are controlled by at least one (1) of the women who owns the business; and
  - (B) that is at least fifty-one percent (51%) owned by women, or if stock is issued, at least fifty-one percent (51%) of the stock is owned by at least one (1) of the women.
- (4) A qualified women's nonprofit corporation.

SECTION 3. IC 4-15-2.2-32, AS AMENDED BY P.L.238-2025, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 32. (a) Former members of the armed forces of the United States who meet both of the following requirements shall receive a preference for appointment or reemployment in the state classified service:

- (1) The veteran served on active duty in any branch of the armed forces.
- (2) The veteran was ~~not~~ discharged or separated from the armed forces under ~~conditions set forth in IC 10-17-12-7.5(2):~~ **honorable conditions.**

(b) When:

- (1) preemployment interviews of external candidates are conducted; and
  - (2) the qualified applicant pool includes veterans;
- veterans must be included in the group offered interviews.

(c) In computing seniority for purposes of a personnel reduction in state civil service, the computation must include the length of time the employee spent ~~on active duty~~ in the armed forces of the United States.

SECTION 4. IC 5-9-3-1, AS AMENDED BY P.L.238-2025,



SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. Persons discharged from the armed forces of the United States under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2)~~, **honorable conditions**, by reason of disability resulting from wounds or sickness incurred in the line of duty, shall be preferred for appointment to civil offices, provided they are found to possess the capacity necessary for the proper discharge of such offices.

SECTION 5. IC 5-9-3-2, AS AMENDED BY P.L.238-2025, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Political subdivisions of the state of Indiana shall allow preference points to eligible armed forces veterans who are being examined for full time employment. Preference points awarded to such veterans on each such examination shall be ten percent (10%) of the total number of points which may be obtained thereon.

(b) To be eligible to receive preference points, under this chapter, a person must have:

- (1) served on active duty in the armed forces of the United States for at least one hundred eighty-one (181) days; and
- (2) received a discharge from service under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2)~~. **honorable conditions**.

(c) The provisions of this chapter are in lieu of any policy of a political subdivision allowing employment preference for veterans in effect before July 1, 1975.

SECTION 6. IC 5-10.3-7-5, AS AMENDED BY P.L.238-2025, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) A member who:

- (1) enters the United States armed services;
- (2) leaves the member's contributions in the fund;
- (3) except as provided in subsection (c), resumes service with the member's employer within one hundred twenty (120) days after the member's unconditional discharge; and
- (4) would be entitled to service credit for military service under the Uniformed Services Employment and Reemployment Rights Act (38 U.S.C. 4301 et seq.) if the member had resumed service with the member's employer within ninety (90) days after discharge;

is entitled to service credit for the armed service.

(b) A state employee who left employment before January 1, 1946, or an employee of a political subdivision who left employment before the participation date, to enter the United States armed services is entitled to service credit for the armed service if the member:

- (1) except as provided in subsection (c), resumes service with the





1 employer within one hundred twenty (120) days after the  
2 member's unconditional discharge; and

3 (2) would be entitled to service credit for military service under  
4 the applicable requirements of federal law in effect at the time of  
5 reemployment if the employee had resumed service with the  
6 employee's employer within ninety (90) days after discharge.

7 (c) The board shall extend the one hundred twenty (120) day  
8 reemployment requirement contained in subsection (a)(3) or (b)(1) if  
9 the board determines that an illness, an injury, or a disability related to  
10 the member's military service prevented the member from resuming  
11 employment within one hundred twenty (120) days after the member's  
12 discharge from military service. However, the board may not extend the  
13 deadline beyond thirty (30) months after the member's discharge.

14 (d) If a member retires and the board subsequently determines that  
15 the member is entitled to additional service credit due to the extension  
16 of a deadline under subsection (c), the board shall recompute the  
17 member's benefit. However, the additional service credit may be used  
18 only in the computation of benefits to be paid after the date of the  
19 board's determination, and the member is not entitled to a  
20 recomputation of benefits received before the date of the board's  
21 determination.

22 (e) Notwithstanding any provision of this section, a member is  
23 entitled to service credit and benefits in the amount and to the extent  
24 required by the Uniformed Services Employment and Reemployment  
25 Rights Act (38 U.S.C. 4301 et seq.).

26 (f) Subject to the provisions of this section, an active member may  
27 purchase and claim not more than two (2) years of service credit for the  
28 member's service on active duty in the armed services if the member  
29 meets the following conditions:

30 (1) The member has at least one (1) year of credited service in the  
31 fund.

32 (2) The member serves on active duty in the armed services of the  
33 United States for at least six (6) months.

34 (3) The member receives a discharge from the armed services  
35 under ~~conditions other than conditions set forth in~~  
36 ~~IC 10-17-12-7.5(2)~~ **honorable conditions**.

37 (4) Before the member retires, the member makes contributions  
38 to the fund as follows:

39 (A) Contributions that are equal to the product of the  
40 following:

41 (i) The member's salary at the time the member actually  
42 makes a contribution for the service credit.



(ii) A rate, determined by the actuary of the fund, that is based on the age of the member at the time the member actually makes a contribution for service credit and computed to result in a contribution amount that approximates the actuarial present value of the benefit attributable to the service credit purchased.

(iii) The number of years of service credit the member intends to purchase.

(B) Contributions for any accrued interest, at a rate determined by the actuary of the fund, for the period from the member's initial membership in the fund to the date payment is made by the member.

However, a member is entitled to purchase service credit under this subsection only to the extent that service credit is not granted for that time under another provision of this section. At least ten (10) years of service in Indiana is required before a member may receive a benefit based on service credits purchased under this section. A member who terminates employment before satisfying the eligibility requirements necessary to receive a monthly allowance or receives a monthly allowance for the same service from another tax supported public employee retirement plan other than under the federal Social Security Act may withdraw the purchase amount plus accumulated interest after submitting a properly completed application for a refund to the fund.

(g) The following apply to the purchase of service credit under subsection (f):

(1) The board may allow a member to make periodic payments of the contributions required for the purchase of the service credit. The board shall determine the length of the period during which the payments must be made.

(2) The board may deny an application for the purchase of service credit if the purchase would exceed the limitations under Section 415 of the Internal Revenue Code.

(3) A member may not claim the service credit for purposes of determining eligibility or computing benefits unless the member has made all payments required for the purchase of the service credit.

SECTION 7. IC 5-10.4-4-8, AS AMENDED BY P.L.238-2025, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) This subsection applies to a member who retires before July 1, 1980. A member who had completed four (4) years of approved college teacher education before voluntary or involuntary induction into the military services is entitled to credit for



1 that service as if the member had begun teaching before the induction.  
 2 A member who serves in military service is considered a teacher and  
 3 is entitled to the benefits of the fund if before or during the leave of  
 4 absence the member pays into the fund the member's contributions.  
 5 Time served by a member in military service for the duration of the  
 6 hostilities or for the length of active service in the hostilities and the  
 7 necessary demobilization time after the hostilities is not subject to the  
 8 one-seventh rule set forth in section 7 of this chapter.

9 (b) This subsection applies to a member who retires after June 30,  
 10 1980. A member who completed four (4) years of approved college  
 11 teacher education before voluntary or involuntary induction into  
 12 military service is entitled to credit for the member's active military  
 13 service as if the member had begun teaching before the induction. A  
 14 member who serves in military service is considered a teacher and is  
 15 entitled to the benefits of the fund if the following conditions are met:

16 (1) The member has received a discharge from military service  
 17 under ~~conditions other than conditions set forth in~~  
 18 ~~IC 10-17-12-7.5(2):~~ **honorable conditions.**

19 (2) Except as provided in subsection (g), the member returns to  
 20 active teaching service not later than twenty-four (24) months  
 21 after the completion of active military service.

22 (3) The member has at least ten (10) years of in-state service  
 23 credit.

24 The time served by a member in military service for the duration of the  
 25 hostilities or for the length of active service in the hostilities and the  
 26 necessary demobilization time after the hostilities is not subject to the  
 27 one-seventh rule set forth in section 7 of this chapter. However, not  
 28 more than six (6) years of military service credit may be granted under  
 29 this subsection.

30 (c) This subsection applies to a member who retires after May 1,  
 31 1989. A member who had begun but had not completed four (4) years  
 32 of approved college teacher education before voluntary or involuntary  
 33 induction into the military services is entitled to service credit in an  
 34 amount equal to the duration of the member's active military service if  
 35 the following conditions are met:

36 (1) The member has received a discharge from military service  
 37 under ~~conditions other than conditions set forth in~~  
 38 ~~IC 10-17-12-7.5(2):~~ **honorable conditions.**

39 (2) Except as provided in subsection (g), the member returns to a  
 40 four (4) year approved college teacher training program not later  
 41 than twenty-four (24) months after the completion of active  
 42 military service and subsequently completes that program.



(3) The member has at least ten (10) years of in-state service credit.

The time served by a member in active military service for the length of active service in the hostilities and the necessary demobilization is not subject to the one-seventh rule set forth in section 7 of this chapter. However, not more than six (6) years of military service credit may be granted under this subsection.

(d) This subsection applies to a member who retires after May 1, 1991, and who is employed at a state educational institution. A member who had begun but had not completed baccalaureate or post-baccalaureate education before voluntary or involuntary induction into military service is entitled to the member's active military service credit for the member's active military service in an amount equal to the duration of the member's military service if the following conditions are met:

(1) The member received a discharge from military service under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2):~~ **honorable conditions.**

(2) Except as provided in subsection (g), the member returns to baccalaureate or post-baccalaureate education not later than twenty-four (24) months after completion of active military service and subsequently completes that education.

(3) The member has at least ten (10) years of in-state service credit.

The time served by a member in active military service for the length of active service in the hostilities and the necessary demobilization is not subject to the one-seventh rule set forth in section 7 of this chapter. However, not more than six (6) years of military service credit may be granted under this subsection.

(e) For purposes of this section, a member returns to active teaching service on the earlier of:

(1) the date on which the member signs a teacher's contract; or

(2) the date on which the member is first employed in a position covered by this article.

(f) For purposes of this section, a member returns to:

(1) a teacher training program; or

(2) baccalaureate or post-baccalaureate education;

on the date the member registers for or enrolls in classes that the member attends.

(g) The board shall extend the twenty-four (24) month deadline contained in subsection (b)(2), (c)(2), or (d)(2) if the board determines that an illness, an injury, or a disability related to the member's military



1 service prevented the member from returning to active teaching service  
 2 or to a teacher education program not later than twenty-four (24)  
 3 months after the member's discharge from military service. However,  
 4 the board may not extend the deadline beyond forty-eight (48) months  
 5 after the member's discharge.

6 (h) If a member retires and the board subsequently determines that  
 7 the member is entitled to additional service credit due to the extension  
 8 of a deadline under subsection (g), the board shall recompute the  
 9 member's benefit. However, the additional service credit may be used  
 10 only in the computation of benefits to be paid after the date of the  
 11 board's determination, and the member is not entitled to a  
 12 recomputation of benefits received before the date of the board's  
 13 determination.

14 (i) Notwithstanding any provision of this section, a member is  
 15 entitled to military service credit and benefits in the amount and to the  
 16 extent required by the federal Uniformed Services Employment and  
 17 Reemployment Rights Act (38 U.S.C. 4301 et seq.), including all later  
 18 amendments.

19 (j) Subject to this section, an active member may purchase and  
 20 claim not more than two (2) years of service credit for the member's  
 21 service on active duty in the armed services if the member meets the  
 22 following conditions:

23 (1) The member has at least one (1) year of credited service in the  
 24 fund.

25 (2) The member serves on active duty in the armed services of the  
 26 United States for at least six (6) months.

27 (3) The member receives a discharge from the armed services  
 28 under conditions other than conditions set forth in  
 29 ~~IC 10-17-12-7.5(2)~~ **honorable conditions**.

30 (4) Before the member retires, the member makes contributions  
 31 to the fund as follows:

32 (A) Contributions that are equal to the product of:

33 (i) the member's salary at the time the member actually  
 34 makes a contribution for the service credit;

35 (ii) a rate, determined by the actuary of the fund, that is  
 36 based on the age of the member at the time the member  
 37 actually makes a contribution for service credit and  
 38 computed to result in a contribution amount that  
 39 approximates the actuarial present value of the benefit  
 40 attributable to the service credit purchased; and

41 (iii) the number of years of service credit the member  
 42 intends to purchase.



(B) Contributions for any accrued interest, at a rate determined by the actuary of the fund, for the period from the member's initial membership in the fund to the date payment is made by the member.

However, a member is entitled to purchase service credit under this subsection only to the extent that service credit is not granted for that time under another provision of this section. At least ten (10) years of service in Indiana is required before a member may receive a benefit based on service credits purchased under this section. A member who terminates employment before satisfying the eligibility requirements necessary to receive a monthly allowance or receives a monthly allowance for the same service from another tax supported public employee retirement plan other than under the federal Social Security Act may withdraw the purchase amount plus accumulated interest after submitting a properly completed application for a refund to the fund.

(k) The following apply to the purchase of service credit under subsection (j):

(1) The board may allow a member to make periodic payments of the contributions required for the purchase of the service credit. The board shall determine the length of the period during which the payments must be made.

(2) The board may deny an application for the purchase of service credit if the purchase would exceed the limitations under Section 415 of the Internal Revenue Code.

(3) A member may not claim the service credit for purposes of determining eligibility or computing benefits unless the member has made all payments required for the purchase of the service credit.

(l) This subsection applies to a member who retires after June 30, 2006. A member may not receive credit under this section for service for which the member receives service credit under the terms of a military or another governmental retirement plan.

SECTION 8. IC 9-18.5-7-3, AS AMENDED BY P.L.238-2025, SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) An Indiana resident who is a current or former member of the Army or Air National Guard may apply for and receive one (1) or more license plates under this chapter.

(b) An individual applying for a National Guard license plate under this chapter as a current member of the National Guard must demonstrate the individual's status as a current member of the Army or Air National Guard by presenting the following with the individual's application:



1 (1) A current United States armed forces identification card.

2 (2) A letter signed by the individual's commanding officer  
3 identifying the individual as a current active member.

4 (c) An individual applying for a National Guard license plate under  
5 this chapter as a former member of the National Guard must present  
6 with the individual's application a copy of the individual's:

7 (1) National Guard Bureau Form 22 or 22A showing the  
8 individual received a discharge under ~~conditions other than~~  
9 ~~conditions set forth in IC 10-17-12-7.5(2);~~ **honorable conditions;**

10 or

11 (2) National Guard Bureau Form 23D or 23E showing the  
12 individual as retired;

13 as proof of the individual's status as a former member of the Army or  
14 Air National Guard.

15 SECTION 9. IC 10-16-6-12, AS AMENDED BY P.L.238-2025,  
16 SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
17 JULY 1, 2026]: Sec. 12. (a) A commissioned officer:

18 (1) who serves in the Indiana national guard for at least five (5)  
19 years; or

20 (2) who becomes permanently disabled from performing the  
21 officer's duties, irrespective of length of service;

22 may, upon retirement from the military service under **honorable**  
23 ~~conditions, other than conditions set forth in IC 10-17-12-7.5(2);~~  
24 whether by resignation or otherwise, and upon application to the  
25 adjutant general, be carried upon a roll to be established and  
26 maintained in the office of the adjutant general. The roll shall be  
27 designated the Indiana national guard retired list.

28 (b) The commissioned officer may wear, on occasion of ceremony,  
29 the uniform of the highest rank held by the officer.

30 (c) An officer carried on the Indiana national guard retired list, if  
31 qualified, is eligible for detail or appointment on the general staff or the  
32 staff of any commander when not physically disqualified for military  
33 duty. However, if an officer carried on the Indiana national guard  
34 retired list is appointed to a staff position as described in this section,  
35 the officer shall be recommissioned in the rank to which the officer has  
36 been appointed. The officer shall hold this rank during the time of the  
37 staff appointment unless the officer is promoted to a higher rank.

38 (d) If the officer retires for a second time from active service, the  
39 officer shall be entered on the Indiana national guard retired list with  
40 the officer's highest rank.

41 (e) An officer whose name appears on the national guard retired list  
42 is not entitled to receive any military pay or emolument from the state



1 during the time the officer remains on the national guard retired list  
 2 unless the officer is specifically assigned to duty on orders from the  
 3 governor. If the officer is assigned to duty on orders from the governor,  
 4 the officer is entitled only to the military pay and allowance provided  
 5 by law for officers of the rank to which appointed.

6 SECTION 10. IC 10-17-1-9, AS AMENDED BY P.L.238-2025,  
 7 SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 8 JULY 1, 2026]: Sec. 9. (a) Subject to subsection (h), a county executive  
 9 shall employ a service officer and may employ service officer assistants  
 10 to serve the veterans of the county. However, with the approval of the  
 11 commission, two (2) or more counties may enter into an agreement to  
 12 employ a service officer if each county demonstrates to the commission  
 13 that the workload does not justify each county employing a separate  
 14 county service officer.

15 (b) Subject to subsection (h), the mayor of a city may employ a  
 16 service officer and may employ service officer assistants to serve the  
 17 veterans of the city.

18 (c) The service officer shall:

19 (1) be:

20 (A) a veteran who received a discharge from military service  
 21 under ~~conditions other than conditions set forth in~~  
 22 ~~IC 10-17-12-7.5(2)~~ **honorable conditions** and who has at least  
 23 six (6) months of active service in the armed forces of the  
 24 United States; or

25 (B) a service officer assistant with not less than two (2) years  
 26 of experience; and

27 (2) be a resident of Indiana or become a resident of Indiana not  
 28 more than six (6) months after the service officer's start date.

29 (d) A service officer assistant must be a resident of Indiana or  
 30 become a resident of Indiana not later than six (6) months after the  
 31 service officer assistant's start date and:

32 (1) satisfy the requirements specified in subsection (c)(1); or

33 (2) be the spouse, surviving spouse, parent, or child of a person  
 34 who satisfies the requirements specified in subsection (c)(1).

35 (e) A rule contrary to subsection (c) or (d) is void.

36 (f) County and city fiscal bodies may appropriate funds necessary  
 37 for the purposes described in this section.

38 (g) Every county or city official and department of the county or city  
 39 shall cooperate with the service officer and shall provide the service  
 40 officer with information necessary in connection with the performance  
 41 of the service officer's duties. Nothing in this subsection shall be  
 42 construed to require a county or city to share information that is





otherwise considered confidential in accordance with law.

(h) After June 30, 2026, a service officer must be accredited by the department in order to provide service to veterans on behalf of the county or city.

SECTION 11. IC 10-17-9-5, AS AMENDED BY P.L.238-2025, SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The superintendent may not appoint or employ a person in an office or a place in the Indiana Veterans' Home because of the political views or affiliation of the appointee or employee or for a reason other than capacity and fitness for the duties to be performed by the appointee or employee. However, among applicants for appointment found capable and fit, preference shall be given to a military veteran who received **a an honorable** discharge from military service ~~under conditions other than conditions set forth in IC 10-17-12-7.5(2)~~ and the spouse, widow, widower, mother, and child of a military veteran who received **a an honorable** discharge from military service. ~~under conditions other than conditions set forth in IC 10-17-12-7.5(2).~~

SECTION 12. IC 10-17-9-7, AS AMENDED BY P.L.238-2025, SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) As used in this section, "eligible person" refers to either of the following:

(1) A member of the uniformed services who was **honorably** discharged from the uniformed services. ~~under conditions other than conditions set forth in IC 10-17-12-7.5(2).~~

(2) The spouse or surviving spouse of a member of the uniformed services who was discharged from the uniformed services under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2).~~ **honorable conditions.**

(b) An eligible person who has a disability is eligible for admission to the home if:

(1) the eligible person is a resident of Indiana or establishes residency in Indiana not later than six (6) months after admission to the home; or

(2) in the case of an eligible person referred to in subsection (a)(1), the eligible person was a resident of Indiana when the eligible person enlisted in the uniformed services.

(c) The Indiana department of veterans' affairs shall adopt rules concerning admission to the home.

(d) In adopting rules governing the admission, maintenance, and discharge of members of the home, the Indiana department of veterans' affairs may establish a fund called the veterans' home comfort and



1 welfare fund. The director shall deposit all money collected from the  
 2 members for the cost of their care and maintenance in the fund. The  
 3 director shall expend this money in any manner that adds to the comfort  
 4 and welfare of the members of the institutions.

5 (e) A part of the veterans' home comfort and welfare fund may be  
 6 withdrawn and deposited in a special fund called the veterans' home  
 7 building fund. The veterans' home building fund shall be used for the  
 8 construction, maintenance, remodeling, or repair of buildings of the  
 9 home.

10 (f) Preference under this section may be given to a person who  
 11 served in an Indiana military organization. Except in cases where the  
 12 surviving spouse of a veteran marries another veteran, the benefits of  
 13 this chapter extend only to a surviving spouse and the spouse of a  
 14 veteran if the contract of marriage was entered into more than five (5)  
 15 years before the date of death of the veteran. Except as otherwise  
 16 provided by law, upon the death of a person in the home, money paid  
 17 to the person or due to the person from a bank, a trust company, a  
 18 corporation, or an individual becomes an asset of the person's estate  
 19 and shall be distributed in the manner prescribed by the probate law of  
 20 the state.

21 SECTION 13. IC 10-17-10-1, AS AMENDED BY P.L.238-2025,  
 22 SECTION 29, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 23 JULY 1, 2026]: Sec. 1. (a) In order for an interested person to qualify  
 24 for an allowance under this chapter:

25 (1) the decedent must have been an Indiana resident at the time of  
 26 death and must have:

27 (A) received a discharge from the armed forces of the United  
 28 States under ~~conditions other than conditions set forth in~~  
 29 ~~IC 10-17-12-7.5(2);~~ **honorable conditions**; or

30 (B) died while serving in the armed forces of the United  
 31 States; or

32 (2) the decedent must have been the spouse or surviving spouse  
 33 of a person described in subdivision (1)(A) or (1)(B) and must  
 34 have been an Indiana resident at the time of death.

35 (b) An interested person must file a claim for an allowance under  
 36 this chapter with the board of commissioners in the county of residence  
 37 of the decedent described in subsection (a). The claim must include:

38 (1) the fact of the service, death, and discharge if discharged from  
 39 service before death; and

40 (2) that the body has been buried in a decent and respectable  
 41 manner in a cemetery or burial ground or that the body has been  
 42 cremated and the cremains have not been interred.



(c) The board of commissioners shall hear and determine the claim like other claims and, if the facts averred are found to be true, shall allow the claim in an amount set by ordinance. However, the amount of the allowance may not be more than one thousand dollars (\$1,000).

SECTION 14. IC 10-17-13.5-3, AS AMENDED BY P.L.238-2025, SECTION 36, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. As used in this chapter, "veteran" means an individual residing in Indiana who:

(1) has served in any branch of the armed forces of the United States or their reserves, in the national guard, or in the Indiana National Guard; and

(2) received a discharge from military service under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2)~~ **honorable conditions.**

SECTION 15. IC 16-33-4-7, AS AMENDED BY P.L.238-2025, SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) Except as provided in subsection (b), the superintendent of the home shall be appointed in the manner prescribed by law and must meet all of the following conditions:

(1) Be a teacher licensed by the state or have at least a baccalaureate degree from an accredited college or university in a field related to education or child growth and development.

(2) Have experience working with children.

(3) At the time of appointment, be a resident and citizen of Indiana.

(4) Have other qualifications as required by the state health commissioner.

(b) When at least two (2) candidates meet the conditions listed in subsection (a), the state health commissioner shall give preference to individuals who have been discharged from the armed forces of the United States under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2)~~ **honorable conditions** in appointing a candidate to the position of superintendent of the home.

SECTION 16. IC 20-20-7-3, AS AMENDED BY P.L.238-2025, SECTION 54, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. As used in this chapter, "eligible veteran" refers to an individual who has the following qualifications:

(1) Served as a member of the armed forces of the United States at any time during at least one (1) of the following periods:

(A) Beginning April 6, 1917, and ending November 11, 1918 (World War I).

(B) Beginning December 7, 1941, and ending December 31,



- 1 1946 (World War II).  
 2 (C) Beginning June 27, 1950, and ending January 31, 1955  
 3 (Korean Conflict).  
 4 (D) Beginning August 5, 1964, and ending May 7, 1975  
 5 (Vietnam Conflict).  
 6 (2) Before the military service described in subdivision (1):  
 7 (A) attended a public or nonpublic high school in Indiana; and  
 8 (B) was a student in good standing at the high school  
 9 described in clause (A), to the satisfaction of the department  
 10 of veterans' affairs.  
 11 (3) Did not graduate or receive a diploma because of leaving the  
 12 high school described in subdivision (2) for the military service  
 13 described in subdivision (1).  
 14 (4) Was discharged from the armed forces of the United States  
 15 under ~~conditions other than conditions set forth in~~  
 16 ~~IC 10-17-12-7.5(2):~~ **honorable conditions**.  
 17 SECTION 17. IC 20-20-7-7, AS AMENDED BY P.L.238-2025,  
 18 SECTION 55, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 19 JULY 1, 2026]: Sec. 7. (a) The department and the department of  
 20 veterans' affairs shall jointly design a form for the application for  
 21 issuance of a diploma under the program.  
 22 (b) The application form must require at least the following  
 23 information about an eligible veteran:  
 24 (1) Personal identification information.  
 25 (2) Military service information, including a copy of the eligible  
 26 veteran's discharge from military service under **honorable**  
 27 ~~conditions. other than conditions set forth in IC 10-17-12-7.5(2):~~  
 28 (3) High school information, including the following:  
 29 (A) Name and address, including county, of the last high  
 30 school attended.  
 31 (B) Whether the high school was a public or nonpublic school.  
 32 (C) Years attended.  
 33 (D) Year of leaving high school to begin military service.  
 34 (E) Year in which the veteran would have graduated if the  
 35 veteran had not left high school to begin military service.  
 36 (4) If the high school attended was a public school, whether the  
 37 veteran prefers receiving a diploma issued by:  
 38 (A) the state board; or  
 39 (B) the governing body of the school corporation governing  
 40 the high school.  
 41 SECTION 18. IC 22-4.1-4-3.3, AS AMENDED BY P.L.238-2025,  
 42 SECTION 61, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 3.3. (a) As used in this section, "veteran" means:

(1) a Hoosier veteran (as defined in IC 1-1-4-5(b)); or

(2) an individual who satisfies the following:

(A) The individual is a resident of Indiana.

(B) The individual has previously served ~~on active duty~~ in any branch of the armed forces of the United States or their reserves, in the National Guard, or in the Indiana National Guard.

(C) The individual received a discharge ~~from service~~ under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2):~~ **honorable conditions.**

(b) Unless otherwise provided by federal law, the department shall give a veteran or the spouse of a veteran priority for placement in any federal or state employment or training program administered by the department if the veteran or the veteran's spouse:

(1) submits documentation satisfactory to the department establishing the veteran's honorable discharge from service; and

(2) meets the eligibility requirements for the program.

SECTION 19. IC 25-8-12.1-12, AS AMENDED BY P.L.238-2025, SECTION 75, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. A person who:

(1) enters active military service of the United States or of this state:

(A) in time of war or an emergency;

(B) for or during a period of training; or

(C) in connection with or under the operation of a system of selective service; and

(2) at the time of entry holds a valid license as a registered barber; shall be granted a similar certificate of registration or license upon presenting to the board a discharge from military service under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2):~~ **honorable conditions**, dated not more than six (6) months before the time of the presentation. The similar certificate or license shall be granted by the board upon payment of a fee established by the board.

SECTION 20. IC 25-10-1-7, AS AMENDED BY P.L.238-2025, SECTION 76, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. Any applicant for a license to practice chiropractic who is a graduate of a legally incorporated chiropractic school, institution or college, and who can produce satisfactory evidence to the board that the:

(1) applicant's chiropractic education was interrupted by reason of the applicant's induction or enlistment into the active armed



forces of the United States; and

(2) applicant received a discharge from the armed forces under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2);~~  
**honorable conditions;**

is entitled to have the applicant's date of graduation determined as if the applicant had completed the applicant's course of study in chiropractic without the interruption.

SECTION 21. IC 25-25-2-1, AS AMENDED BY P.L.238-2025, SECTION 77, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) This section applies to:

(1) any veteran described in IC 10-17-5-2 or IC 10-17-5-1 (before their repeal); or

(2) any other veteran to whom this chapter applies because of the provisions of any other statute;

who received a discharge from military service under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2) from such service issued by the proper authorities;~~ **honorable conditions.** Such a person shall be entitled to a license to vend, hawk, and peddle goods, wares, fruits, and merchandise in any county, city, or town in Indiana without the payment of any fee for the license. Upon the presentation of the person's certificate and papers of discharge, properly executed, to the auditor of any county and proving the person's identity as the person named in the person's certificate of discharge, the auditor shall issue to the former soldier or sailor a free license to vend, hawk, and peddle goods, wares, fruits, and merchandise in the county and in all cities and towns in the county. A fee may not be charged to the holder of the license by the auditor, by the authorities of any city or town in the county, or by any other officer. The license shall be full and complete authority to vend, hawk, and peddle without the payment of any sum of money.

(b) A person who acquires a license under this section is subject to all county, city, or town regulations and ordinances concerning vendors, hawkers, or peddlers, except for those provisions requiring payment of money for obtaining a license.

SECTION 22. IC 25-37-1-14, AS AMENDED BY P.L.238-2025, SECTION 79, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) This section applies to a county having a consolidated city.

(b) A veteran who received a discharge from the armed forces of the United States under ~~conditions other than conditions set forth in IC 10-17-12-7.5(2)~~ **honorable conditions** is exempt from the payment of a fee for a transient merchant license issued under this chapter by a



1 municipality located wholly or partially within the county.

2 (c) Upon the presentation of the veteran's certificate and papers of  
3 discharge and proof of the veteran's identity, the official designated by  
4 the municipality shall issue a transient merchant license to the veteran.  
5 A person licensed under this section shall comply with all ordinances  
6 of the county or municipality governing transient merchants.

7 SECTION 23. IC 36-8-4-10, AS AMENDED BY P.L.238-2025,  
8 SECTION 92, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
9 JULY 1, 2026]: Sec. 10. (a) Subject to subsection (c), the board or  
10 persons having the authority to employ members of the fire or police  
11 department shall give a preference for employment according to the  
12 following priority:

13 (1) A war veteran who has been discharged from the armed forces  
14 of the United States under ~~conditions other than conditions set~~  
15 ~~forth in IC 10-17-12-7.5(2):~~ **honorable conditions.**

16 (2) A person whose mother or father was a:

17 (A) firefighter of a unit;

18 (B) municipal police officer; or

19 (C) county police officer;

20 who died in the line of duty (as defined in IC 5-10-10-2).

21 (b) Subject to subsection (c), the board or person having the  
22 authority to employ members of a fire or police department may give  
23 a preference for employment to any of the following:

24 (1) A police officer or firefighter laid off by another city under  
25 section 11 of this chapter.

26 (2) A county police officer laid off by a sheriff's department under  
27 IC 36-8-10-11.1.

28 (3) A person who:

29 (A) was employed full-time or part-time by a township to  
30 provide fire protection and emergency services; and

31 (B) has been laid off by the township.

32 (c) A person described in subsection (a) or (b) may not receive a  
33 preference for employment unless the person:

34 (1) applies; and

35 (2) meets all employment requirements prescribed:

36 (A) by law, including physical and age requirements; and

37 (B) by the fire or police department.

38 SECTION 24. IC 36-8-4.7-5, AS AMENDED BY P.L.238-2025,  
39 SECTION 94, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
40 JULY 1, 2026]: Sec. 5. (a) Notwithstanding any contrary law, an  
41 appointing authority shall waive any age restriction for a person not  
42 more than forty (40) years and six (6) months of age that applies to the



1 appointment and hiring of an individual as:

2 (1) a member of the police department; or

3 (2) a member of the fire department;

4 if the individual meets the requirements of subsection (b).

5 (b) An individual who meets all the following requirements is  
6 entitled to the waiver described in subsection (a):

7 (1) On the date the individual applies to be appointed and hired  
8 as:

9 (A) a member of the police department; or

10 (B) a member of the fire department;

11 the individual is a veteran who has completed at least twenty (20)  
12 years of military service.

13 (2) The individual received or is eligible to receive a discharge  
14 from the armed forces of the United States under ~~conditions other~~  
15 ~~than conditions set forth in IC 10-17-12-7.5(2):~~ **honorable**  
16 **conditions.**

17 (3) The individual meets all other requirements for appointment  
18 and hiring as:

19 (A) a member of the police department; or

20 (B) a member of the fire department;

21 including all physical requirements.

22 (c) An individual who is entitled to the waiver described in  
23 subsection (a) is eligible to become a member of the 1977 fund.

24 SECTION 25. IC 36-8-5-8, AS AMENDED BY P.L.238-2025,  
25 SECTION 95, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
26 JULY 1, 2026]: Sec. 8. (a) A police officer or firefighter desiring to  
27 return to service in the police or fire department shall report to the  
28 person responsible for regulating and employing members of the  
29 department. This action must be taken within sixty (60) days after a  
30 discharge under **honorable** conditions ~~other than conditions set forth~~  
31 ~~in IC 10-17-12-7.5(2)~~ from military service or government war work.

32 (b) Within fifteen (15) days after the police officer or firefighter  
33 reports to the department, the police officer or firefighter shall be  
34 placed on duty at the rank held at the time of entering military service  
35 or government war work.

36 (c) If a member of the police or fire department is refused a proper  
37 assignment under subsection (b), the member of the police or fire  
38 department may file an action in the circuit court, superior court, or  
39 probate court of the county in the manner prescribed by IC 36-8-3-4.

40 SECTION 26. IC 36-8-10-10.4, AS AMENDED BY P.L.238-2025,  
41 SECTION 96, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
42 JULY 1, 2026]: Sec. 10.4. (a) Subject to subsection (c), the board shall





1 give a preference for employment according to the following priority:

2 (1) A war veteran who has been discharged from the armed forces  
3 of the United States under ~~conditions other than conditions set~~  
4 ~~forth in IC 10-17-12-7.5(2)~~: **honorable conditions.**

5 (2) A person whose mother or father was a:

6 (A) firefighter of a unit;

7 (B) municipal police officer; or

8 (C) county police officer;

9 who died in the line of duty (as defined in IC 5-10-10-2).

10 (b) Subject to subsection (c), the board may give a preference for  
11 employment to any of the following:

12 (1) A member of another department laid off under section 11.1  
13 of this chapter.

14 (2) A police officer laid off by a city under IC 36-8-4-11.

15 (c) A person described in subsection (a) or (b) may not receive a  
16 preference for employment unless the person:

17 (1) applies; and

18 (2) meets all employment requirements prescribed:

19 (A) by law, including physical and age requirements; and

20 (B) by the department.

21 SECTION 27. IC 36-8-13-3, AS AMENDED BY P.L.238-2025,  
22 SECTION 102, IS AMENDED TO READ AS FOLLOWS  
23 [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The executive of a township,  
24 with the approval of the legislative body, may do the following:

25 (1) Purchase firefighting and emergency services apparatus and  
26 equipment for the township, provide for the housing, care,  
27 maintenance, operation, and use of the apparatus and equipment  
28 to provide services within the township but outside the corporate  
29 boundaries of municipalities, and employ full-time or part-time  
30 personnel to operate the apparatus and equipment and to provide  
31 services in that area. Preference in employment under this section  
32 shall be given according to the following priority:

33 (A) A war veteran who has been discharged from the armed  
34 forces of the United States under ~~conditions other than~~  
35 ~~conditions set forth in IC 10-17-12-7.5(2)~~: **honorable**  
36 **conditions.**

37 (B) A person whose mother or father was a:

38 (i) firefighter of a unit;

39 (ii) municipal police officer; or

40 (iii) county police officer;

41 who died in the line of duty (as defined in IC 5-10-10-2).

42 The executive of a township may give a preference for



employment under this section to a person who was employed full-time or part-time by another township to provide fire protection and emergency services and has been laid off by the township. The executive of a township may also give a preference for employment to a firefighter laid off by a city under IC 36-8-4-11. A person described in this subdivision may not receive a preference for employment unless the person applies for employment and meets all employment requirements prescribed by law, including physical and age requirements, and all employment requirements prescribed by the fire department.

(2) Contract with a municipality in the township or in a contiguous township that maintains adequate firefighting or emergency services apparatus and equipment to provide fire protection or emergency services for the township in accordance with IC 36-1-7.

(3) Cooperate with a municipality in the township or in a contiguous township in the purchase, maintenance, and upkeep of firefighting or emergency services apparatus and equipment for use in the municipality and township in accordance with IC 36-1-7.

(4) Contract with a volunteer fire department that has been organized to fight fires in the township for the use and operation of firefighting apparatus and equipment that has been purchased by the township in order to save the private and public property of the township from destruction by fire, including use of the apparatus and equipment in an adjoining township by the department if the department has made a contract with the executive of the adjoining township for the furnishing of firefighting service within the township.

(5) Contract with a volunteer fire department that maintains adequate firefighting service in accordance with IC 36-8-12.

(6) Use money in the township's rainy day fund to pay costs attributable to providing fire protection or emergency services under this chapter.

(b) This subsection applies only to townships that provide fire protection or emergency services or both under subsection (a)(1) and to municipalities that have some part of the municipal territory within a township and do not have a full-time paid fire department. A township may provide fire protection or emergency services or both without contracts inside the corporate boundaries of the municipalities if before July 1 of a year the following occur:

(1) The legislative body of the municipality adopts an ordinance



1 to have the township provide the services without a contract.

2 (2) The township legislative body passes a resolution approving  
3 the township's provision of the services without contracts to the  
4 municipality.

5 In a township providing services to a municipality under this section,  
6 the legislative body of either the township or a municipality in the  
7 township may opt out of participation under this subsection by adopting  
8 an ordinance or a resolution, respectively, before July 1 of a year.

9 (c) This subsection applies only to a township that:

10 (1) is located in a county containing a consolidated city;

11 (2) has at least three (3) included towns (as defined in  
12 IC 36-3-1-7) that have all municipal territory completely within  
13 the township on January 1, 1996; and

14 (3) provides fire protection or emergency services, or both, under  
15 subsection (a)(1);

16 and to included towns (as defined in IC 36-3-1-7) that have all the  
17 included town's municipal territory completely within the township. A  
18 township may provide fire protection or emergency services, or both,  
19 without contracts inside the corporate boundaries of the municipalities  
20 if before August 1 of the year preceding the first calendar year to which  
21 this subsection applies the township legislative body passes a  
22 resolution approving the township's provision of the services without  
23 contracts to the municipality. The resolution must identify the included  
24 towns to which the resolution applies. In a township providing services  
25 to a municipality under this section, the legislative body of the  
26 township may opt out of participation under this subsection by adopting  
27 a resolution before July 1 of a year. A copy of a resolution adopted  
28 under this subsection shall be submitted to the executive of each  
29 included town covered by the resolution, the county auditor, and the  
30 department of local government finance.

